

26STCV00741 26STCV00741

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Case Number: 26STCV00741 Hearing Date: August 6, 2026 Dept: 1

Tentative Ruling

Judge Theresa M. Traber, Department 1

HEARING DATE: August 6, 2026

CASE: Henry Singleton, Jr. v. Corinthian International Parking LA, Inc.

CASE NO.: 26STCV00741

MOTION

TO COMPEL ARBITRATION

Moving Party: Defendant Corinthian

International Parking LA, Inc. (Bradley + Wellerstein LLP)

Responding Party: Plaintiff Henry Singleton, Jr. (Lavi & Ebrahimi)

Ruling: The motion to compel arbitration is GRANTED

This is a wage and hour putative class action. Plaintiff Henry Singleton, Jr. (Plaintiff) alleges that he and others were employed by defendant Corinthian International Parking LA, Inc. (Defendant), during which employment Defendant committed various violations of labor law. Defendant moves to compel Plaintiff's claims to arbitration pursuant to an arbitration agreement (the Arbitration Agreement, or simply Agreement) he purportedly

signed.

LEGAL STANDARDS

Code of Civil Procedure section 1281.2

states, in relevant part:¿

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists....¿

“There is no public policy favoring arbitration of disputes which the parties have not agreed to arbitrate.” (Engineers & Architects Assn. v. Community Development Dept.¿(1994) 30 Cal.App.4th 644, 653.) On the other hand, once an enforceable arbitration agreement has been found, “[d]oubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of arbitration[,]” and the law favors such agreements. (Vianna v. Doctors’ Management Co.¿(1994) 27 Cal.App.4th 1186, 1189; see also People v. Maplebear Inc. (2022) 81 Cal.App.5th 923, 930-931.)¿ ¿¿

“The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Giuliano v. Inland Empire Personnel, Inc.¿(2007) 149 Cal.App.4th 1276, 1284.)¿¿The movant may bear its initial burden “by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755 (Iyere); Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060.) “At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in [Rules of Court, Rule 3.1330].’” (Iyere, supra, 87 Cal.App.5th at 755; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th

215, 219 (Condee).)

“The party opposing arbitration has the burden of demonstrating that an arbitration clause cannot be interpreted to require arbitration of the dispute. Nonetheless, this policy does not override ordinary principles of contract interpretation. The contractual terms themselves must be carefully examined before the parties to the contract can be ordered to arbitration: Although [t]he law favors contracts for arbitration of disputes between parties, there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate.” (Rice v. Downs, (2016) 247 Cal.App.4th 1213, 1223, citations and quotations omitted.)

“A party seeking to enforce an arbitration agreement has the burden of showing FAA preemption.” (Lane v. Francis Capital Management, LLC (2014) 224 Cal.App.4th 676, 687; see also Nixon v. AmeriHome Mortgage Company, LLC (2021) 67 Cal.App.5th 934, 946 [“The party seeking to enforce the arbitration agreement also bears the burden of establishing the FAA applies and preempts otherwise governing provisions of state law or the parties’ agreement.”].)

DISCUSSION

Defendant presents an arbitration agreement purporting to bear Plaintiff’s signature, fulfilling its initial burden under Iyer, supra, 87 Cal.App.5th at 755. (See Spaitz Decl., Ex. 1 [Agreement].)

Lavi & Ebrahimian has filed a “limited opposition” which nonetheless states in no uncertain terms that Plaintiff “discharged Lavi & Ebrahimian, LLP (the ‘Firm’) shortly after the complaint was filed. Because no substitution of attorney or order relieving counsel has been filed, the Firm remains counsel of record, but it does not purport to speak for Singleton on formation, scope, enforceability, unconscionability, or any other defense personal to him. Undersigned counsel requests leave to address only the separate relief that would terminate the putative class allegations and foreclose the replacement process previously disclosed to the Court.” (Opposition, p. 1.)

Setting aside whether Lavi & Ebrahimi has an ethical obligation to withdraw in these circumstances (see Cal. Rules Prof. Cond., rule 1.16(a)(4) [a lawyer shall “where representation has commenced, ...withdraw from the representation of a client if: ... (4) the client discharges the lawyer”]), they offer no defense to the enforcement of the Agreement. It is as though the motion is unopposed. Defendant has met its burden, and so the Court will enforce the Agreement.

The Agreement contains a class action waiver:

I also agree that I will not join or participate in a class action or a representative action or otherwise consolidate any claim I might have with the claims of others in court or in arbitration. I understand this means that I will not be able to participate in a class-action or class-wide Arbitration, either as a representative or member of any class of claimants pertaining to any such claim. I further understand that this agreement to arbitrate also applies to any disputes that the Company may have with me. This agreement shall cover disputes arising both before and after the execution of this document.

(Spaights Decl., Ex. 1, § A.)

A “class claim” does not exist on its own. That is, it has no existence independent from its relationship with the class representative’s individual claim and cannot continue where the individual claim is disposed of. (See *Watkins v. Wachovia Corp.* (2009) 172 Cal.App.4th 1576, 1588 (*Watkins*) [“*Watkins* assumes, however, that her ‘class claim’ for unpaid overtime wages has independent vitality and can continue after she has settled her ‘individual claim’ for the same wages. The argument reflects a misunderstanding of the nature of a class action.”])

A representative plaintiff still possesses only a single claim for relief—the plaintiff’s own. That the plaintiff has undertaken to also sue “for the benefit of all” does not mean that the plaintiff has somehow obtained a “class claim” for relief that can be asserted independent of the plaintiff’s own claim. “[T]he right of a litigant to employ [class action procedure] is a procedural right only, ancillary to the litigation of substantive claims. Should these substantive claims become moot ..., by settlement of all personal claims for example, the court retains no jurisdiction over the controversy of the individual plaintiffs.”

(Watkins, supra, 172 Cal.App.4th at 1589.) Because Defendant has satisfied its initial burden of showing an enforceable arbitration agreement with a class waiver provision, Plaintiff's claims are properly compelled to arbitration and the class claims dismissed without prejudice.

Lavi & Ebrahimian does not engage with the language of the Agreement or the bedrock principle expressed in Watkins that a class claim does not exist separate from a representative's individual claim but merely argues that various high-level U.S. Supreme Court decisions do not require dismissal of the class claims.

(See, e.g., Stolt-Nielsen S.A. v. AnimalFeeds International Corp. (2010) 559 U.S. 662, 684; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 344; Epic Systems Corp. v. Lewis (2018) 584 U.S. 497, 502.) Lavi & Ebrahimian urges the Court to follow the substitution procedure set forth in La Sala v. American Savings & Loan Association (1971) 5 Cal.3d 864 (La Sala) and Jones v. Farmers Ins. Exchange (2013) 221 Cal.App.4th 986 (Jones). Again assuming that Lavi & Ebrahimian has standing to make that arguments at all, it is not meritorious. As discussed in Watkins, La Sala is a case in which the plaintiff's case was "picked off" through the "involuntary receipt of relief," that is, the defendant giving the plaintiff all individual relief requested so as to moot the plaintiff's claims. (See Watkins, supra, 172 Cal.App.4th at 1589-1590, citing La Sala, supra, 5 Cal.3d at 872.) That is not the case here. In Jones, the plaintiff was found to be an inadequate class representative because he had not filed a declaration stating he understood his obligations to the class, but the Court of Appeal held that the Trial Court should have granted leave to amend the complaint to name a suitable class representative. (Jones, supra, 221 Cal.App.4th at 998-999.) Here, there is no issue of inadequacy, but rather, Plaintiff has waived his right to serve as a class representative or even be a member of a class by signing an enforceable arbitration agreement. Arbitration was not an issue in either La Sala or Jones, and in neither case had the putative class representative discharged the attorneys bringing the action, bespeaking an intent not to proceed with the case at all.

In sum, Defendant has borne its burden to show an enforceable agreement, and Plaintiff has not opposed the enforceability of that agreement. Lavi & Ebrahimian have not either and lack standing to make contentions on behalf of anyone but their client, who has discharged them. Their arguments under Cal. Rules of Court, rule 3.770 concerning the voluntary dismissal of class action claims are not germane to the motion to compel

arbitration, which only involves the enforcement of an agreement to arbitrate along with a class action waiver. Even if Lavi & Ebrahimian may be heard in opposition to the motion to compel arbitration, their arguments furnish no reason not to grant it.

CONCLUSION

For the foregoing reasons, the motion to compel arbitration is GRANTED. Plaintiff is required to arbitrate his individual claims pursuant to the Agreement. His class claims are dismissed. Defendant to give notice.